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Case Number: 25PSCV01613 Hearing Date: July 16, 2026 Dept: 6

CASE

NAME: Coco Wen Liang v. Jian Ru Liang

Plaintiff's

Motion for Leave to File Second Amended Complaint to Join Indispensable Parties

TENTATIVE

RULING

The Court GRANTS Plaintiff's Motion for Leave to File Second Amended Complaint to Join Indispensable Parties. Plaintiff must file and serve the proposed Second Amended Complaint, attached as Exhibit A to the moving papers, within five calendar days of the Court's order. The Court will discuss with the parties a new trial date and corresponding discovery deadlines at the hearing on this motion.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a real property dispute. On May 5, 2025, plaintiff Coco Wen Liang (Plaintiff) filed this action against defendant Jian Ru Liang (Defendant), alleging causes of action for breach of contract, partition by sale, accounting, constructive trust, declaratory relief, and injunctive relief. On March 3, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against Defendant, alleging causes of action for fraud – deceit, breach of fiduciary duty, constructive fraud, unjust enrichment/conversion, accounting,

partition by sale, imposition of a constructive trust, and declaratory relief.

On June 22, 2026, Plaintiff moved for leave to file a Second Amended Complaint. On June 29, 2026, Defendant opposed the Motion. On July 2, 2026, Plaintiff replied to Defendant's Opposition.

LEGAL

STANDARD

Code of Civil

Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule

3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

DISCUSSION

Summary of Arguments

Plaintiff

seeks leave to file a Second Amended Complaint (SAC) to join Tiffany Tam and Lik Sing Tam as indispensable parties, arguing that new discovery established their direct participation in the alleged straw-buyer loan fraud scheme. Plaintiff asserts that verified interrogatory responses on April 6, 2026 and admissions during the May 18, 2026 Informal Discovery Conference revealed that \$150,000 in partnership equity was wired into a joint account held by Defendant and Tiffany Tam, and was used as the down payment for the Vuepointe Property. Plaintiff contends that both proposed defendants hold recorded legal title to the Vuepointe Property, making joinder mandatory under Code of Civil Procedure section 389 because equitable relief such as a constructive trust or equitable lien cannot be enforced without them. Plaintiff argues that her diligence is demonstrated by the fact that she refrained from naming them until admissible, perjury-backed evidence surfaced.

Plaintiff

then argues that Tiffany Tam and Lik Sing Tam have been actively involved in blocking discovery, including filing coordinated objections to subpoenas and leveraging their non-party status to refuse production of loan records, thereby necessitating joinder to dismantle what Plaintiff characterizes as an “artificial shield.” Plaintiff contends that no prejudice will result from the amendment because she will not seek a trial continuance, and the proposed defendants already possess full knowledge of the claims and have participated in discovery disputes. Plaintiff argues that Defendant’s refusal to produce documents on the grounds that her daughter “is not a defendant” underscores why joinder is required for complete adjudication. Plaintiff contends that the absence of these title holders would render any eventual judgment unenforceable, particularly regarding constructive trust and equitable lien remedies.

In

opposition, Defendant argues that Plaintiff’s renewed motion to amend should be denied because Plaintiff has never proven that the \$150,000 loan was partnership property or that she had any legal right to the loan proceeds.

Defendant contends that all repayment obligations, credit risk, and liability for the loan belonged solely to Defendant, and that Plaintiff was not a borrower, did not assume repayment responsibility, and has provided no evidence of contributing funds. Defendant argues that Plaintiff has not shown any monetary injury related to the 3626 Baldwin property, as she presented no proof of contributing to the down payment, mortgage payments, taxes, insurance, or repairs. Defendant contends that because Plaintiff has not demonstrated ownership, contribution, or financial loss, Plaintiff's claims of fraud, conspiracy, constructive trust, and equitable lien lack a factual foundation. Defendant argues that Tiffany Tam and Lik Sing Tam are not indispensable parties since complete relief can be granted between the existing parties without adding them. Finally, Defendant maintains that Plaintiff's renewed motion does not cure the fundamental defects previously identified by the Court, warranting denial of the requested amendment.

Analysis

The Court finds permitting Plaintiff leave to amend would be proper here. First, policy strongly favors leave to amend. (*Kittredge Sports Co. v. Superior Court*, supra, 213 Cal.App.3d at p. 1047.) Second, Plaintiff's renewed motion substantially complies with the requirements of Rule 3.1324 of the Code of Civil Procedure and sufficiently addresses issues noted in the Court's prior ruling. (See Cal. Rules of Court, rule 3.1324, subds. (a)-(b); Order Re: Court Ruling (6/17/26).) Plaintiff's declaration sufficiently demonstrates the effect of the proposed amendments, why the proposed amendments are necessary and proper, when Plaintiff discovered the facts supporting leave to amend, and why amendment was not sought earlier. (Liang Decl., pp. 1-9.) Plaintiff's declaration also specifies the proposed additions and deletions for the SAC. (Liang Decl., pp. 9-18.)

Notwithstanding

Plaintiff's indication that she does not seek a trial continuance, the concern regarding proximity to trial is the potential prejudice to the new defendants, i.e., Tiffany Tam and Lik Sing Tam, who will otherwise only have a few months to prepare their defenses for trial, which would be insufficient and unduly prejudice them. (See *Magpali v. Farmers Grp., Inc.* (1996) 48 Cal.App.4th 471, 488.) Accordingly, the Court will discuss with the parties a new trial date and corresponding discovery deadlines at the hearing on this motion.

The Court

notes that the two versions of the SAC attached to the moving papers are not a clean copy and a redlined copy as Plaintiff indicates. First, there is no redlined copy attached as Exhibit B. Second, while the allegations appear to be the same between the two documents, the exhibits attached to each version of the SAC appear to differ from each other. (See Motion, p. 9, Exs. A-B.) Given that Plaintiff indicates the clean version is supposed to be Exhibit A, that version will be the one Plaintiff files and serves as the operative SAC.

Based on the foregoing, the Court GRANTS the motion. Plaintiff must file and serve the proposed Second Amended Complaint, attached as Exhibit A to the moving papers, within five calendar days of the Court's order. The Court will discuss with the parties a new trial date and corresponding discovery deadlines at the hearing on this motion.

CONCLUSION

The Court GRANTS Plaintiff's Motion for Leave to File Second Amended Complaint to Join Indispensable Parties. Plaintiff must file and serve the proposed Second Amended Complaint, attached as Exhibit A to the moving papers, within five calendar days of the Court's order. The Court will discuss with the parties a new trial date and corresponding discovery deadlines at the hearing on this motion.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.